

Before the European Data Protection Day, the Agency for Personal Data Protection, in collaboration with the Croatian Employers' Association and the IAPP KnowledgeNet chapter Croatia, organized a GDPR conference titled "Data Protection Officer – The Job of the Future" on January 27 at the Westin Hotel. This conference was dedicated to key individuals in the personal data protection system – data protection officers.

In his opening address, the Director of the Agency for Personal Data Protection, Zdravko Vukić, spoke about the Agency's activities in the previous year and emphasized that the Agency had conducted enhanced supervisory activities that resulted in the highest number of administrative monetary fines imposed for violations of personal data protection laws in the Republic of Croatia to date. He also noted that last year, the highest fine to date was imposed, amounting to 2.15 million kuna. "In 2023, the focus of the coordinated initiative of the European Data Protection Board, and thus the Agency for Personal Data Protection, will be on data protection officers. In the modernized data management system, the data protection officer plays a crucial role. Unfortunately, the practice and research we conducted show that more than 50% of data protection officers lack adequate knowledge and competencies for the responsible work they perform, and more than 80% indicate that they need additional education in the field of personal data protection. For this reason, we dedicate this day to the key stakeholders – the officers, whose job is not easy at all, especially considering the rapid development of modern technologies and the upcoming regulations of the European Union."

The envoy of the Prime Minister of the Republic of Croatia and Minister of Defense, Dr. sc. Mario Banožić, stated that the exchange of knowledge, experiences, and opinions among experts and officials from the public, financial, and IT sectors is the greatest value of this conference. "The protection of personal data has become one of the main topics in the European Union, and citizens of the European Union, including those in the Republic of Croatia, are more aware than ever that the protection of personal data and privacy are fundamental human rights that must be absolutely protected. For this reason, particularly in the context of global trends, I would like to highlight the digital trends that require us to invest further in cybersecurity." Minister Banožić also emphasized in his address that the Ministry of Defense and the Croatian Army recognized the importance of having the capability to defend against cyberattacks through the established Cyber Space Command. "I am convinced that the improvement of the personal data protection system is only possible through continuous interdepartmental cooperation, the exchange of experiences, and ongoing training and acquisition of new knowledge and skills."

"Personal data protection starts with ourselves, so let us not joke with our own and others' personal data; let us respect them. I am pleased that today's conference is dedicated precisely to data protection officers who are the engine, the center, and the essence of data protection," said the envoy of the President of the Croatian Parliament and Member of Parliament Nikola Mažar, highlighting that certain progress has been made in the protection of personal data and privacy, but that much work remains ahead of us and the Agency for Personal Data Protection, which is key for oversight and education on the importance of personal data protection.

The European Data Protection Supervisor, Wojciech Wiewiórowski, expressed gratitude for the activities that the Agency for Personal Data Protection has conducted at both the international and local levels. "Data protection officers are mandatory, and their independence is very important, especially in the public sector. They need to be encouraged, and the competencies of the data protection officer profession in the Republic of Croatia need to be raised. Therefore, I welcome the Agency's approach to this conference and believe that thanks to this conference, the knowledge of the officers will be elevated to a new level and that the experiences exchanged will be beneficial not only for the Republic of Croatia but also for other countries."

State Secretary of the Central State Office for the Development of the Digital Society, Bernard Gršić, also emphasized the increasing importance of cybersecurity. "It is necessary to establish and maintain cybersecurity hygiene due to the rise of cyberattacks on a global scale and the growing misuse of personal data on social networks. Citizens need to be educated as much as possible about the use of digital services, especially the most vulnerable groups, children and the elderly."

Doc. Dr. sc. Petar Mišević, advisor to the President of the Croatian Chamber of Economy, highlighted the importance of education and raising awareness about the importance of data protection. "The Agency for Personal Data Protection, in collaboration with the Croatian Chamber of Economy, has conducted training for over 2000 entrepreneurs within the framework of the EU project ARC and will continue this collaboration to facilitate entrepreneurs' compliance with data protection laws."

About three hundred data protection officers who participated in the conference had the opportunity to hear from experts and data protection officers from the public, financial, and IT sectors about the challenges they face and solutions in implementing the General Data Protection Regulation. Three panels were held as part of the conference: "The Role of the Data Protection Officer in the Public Sector," "Personal Data Protection in the Financial Sector: Challenges and Solutions," and "Is Technology Stealing Privacy?"

In the first panel, moderated by Iva Nappholz, legal advisor for projects and support for branch associations from the Croatian Employers' Association, the panelists included Ms. Vlatka Vuković (external data protection officer, Horvath Wolf d.o.o.), Mr. Ivan Pristaš (head of the Department of Medical Informatics, Croatian Institute of Public Health), Mr. Igor Barlek (external data protection officer, GDPR Croatia), Mr. Ante Barać (data protection officer, HEP d.d.), and...

Assoc. Prof. Dr. Renata Mekovec (Faculty of Organization and Informatics) discussed the role of data protection officers in the public sector, emphasizing that the job classification in the public sector does not recognize the position of a data protection officer as a distinct job role. Therefore, an individual must perform the function of a data protection officer in addition to their regular job, for which they are not adequately trained. In the introductory part of the panel, Anna Hänninen from the Finnish Data Protection Authority also addressed the audience online.

Participants of the second panel included Ms. Lara Grubišić (Data Protection Officer, Erste Card Club d.o.o.), Ms. Renata Sablić (Director of the Compliance Sector, Croatia osiguranje d.d.), Ms. Josipa Višnjic (Head of the Compliance and Legal Affairs Department, EOS Matrix d.o.o.), Ms. Danijela Pedić (Data Protection Officer, Hrvatska poštanska banka d.d.), and Mr. Hrvoje Kuterovac (Data Protection Officer, FINA), who discussed the challenges and solutions in personal data protection within the financial sector. The panel was moderated by Iva Katić from the Agency for Personal Data Protection.

In response to the question of the last panel, "Does technology steal privacy?", which was moderated by Mr. William Bello from the IAPP KnowledgeNet chapter Croatia, the panel participants Mr. Marijan Bračić (LegIT Software d.o.o.), Ms. Nikolina Staničić (Data Protection Officer, Ericsson Nikola Tesla d.d.), Mr. Neven Dujmović (Arthrex d.o.o.), Dr. Natalija Parlov Una (certification auditor for information security and privacy, TÜV NORD), and Mr. Marko Porobija (law firm Porobija & Špoljarić) provided affirmative answers.

Furthermore, new regulations such as the EU Council Directive on the security of network and information systems (NIS 2), the CER Directive – Directive on the resilience of critical entities, the Regulation on digital operational resilience for the financial sector, and similar regulations imply significant investments in cybersecurity and human resources, as well as a systematic approach to compliance, which poses a challenge for organizations. Therefore, the panels were an ideal opportunity for officials to exchange views on how these developments will affect their work.

The conference was also attended by the State Secretary of the Central State Office for Demography and Youth, Dr. Željka Josić, State Secretaries from the Ministry of Justice and Administration, Sanjin Rukavina, and from the Ministry of Regional Development and EU Funds, Spomenka Đurić, Ambassador of the Republic of North Macedonia, H.E. Milaim Fetaj, the Ombudswoman Tena Šimonović Einwalter, the Children's Ombudswoman Helenca Pirnat Dragičević, the Commissioner for Information, Dr. Zoran Pičuljan, the Vice-Rector of the Catholic University of Croatia, Roberto Antolović, the Dean of the Faculty of Law in Osijek, Tunjica Petrašević, and other esteemed guests.

Additionally, the Council of Europe, with the support of the European Commission, declared January 28 as European Data Protection Day in 2006, which is also known worldwide as Privacy Day, to raise

public awareness about the fundamental human right – the right to personal data protection and privacy.

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